

HOUSE No. 5463

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to a conservation restriction in the town of Middleton.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>5/26/2026</i>
<i>Sally P. Kerans</i>	<i>13th Essex</i>	<i>5/27/2026</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>5/26/2026</i>

HOUSE No. 5463

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 5463) of Bradley H. Jones, Jr., Sally P. Kerans and Bruce E. Tarr (by vote of the town) relative to a conservation restriction in the town of Middleton. Municipalities and Regional Government.
[Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to a conservation restriction in the town of Middleton.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Pursuant to chapter 3 § 5A of the general laws, notwithstanding the
2 provisions of any other general or special law to the contrary, the conservation commission of
3 the town of Middleton may execute a certificate of release or amendment in order to release or
4 exclude certain portions of land from a conservation restriction granted by Monastiero
5 Consulting Services, LLC and recorded in the Essex County registry of deeds at book 28684 and
6 page 482, for the purposes of resolving a prior violation of the conservation restriction. Said
7 portions of land to be released or excluded from the conservation restriction consists of
8 approximately 38,197 square feet, shown as “the Original Conservation Restriction” on a plan of
9 land entitled Lots 3 and 4 Leitner Way & Essex County Greenbelt Association, prepared by
10 Williams & Sparages, LLC, dated April 2, 2026, a copy of which is on file with the town clerk.

11 SECTION 2. As a condition of the release or amendment described in section 1, to ensure
12 no net loss of land subject to article 97 of the amendments to the constitution of the

13 commonwealth, the conservation commission of the town of Middleton shall accept and hold a
14 conservation restriction as defined in section 31 of chapter 184 of the general laws, on a parcel of
15 land referenced as Lot 10A, containing approximately 9.33 acres as shown on a plan of land
16 entitled "A Plan of Land in Middleton, Massachusetts," dated October 9, 1996, prepared by
17 Hayes Engineering, Inc., said land being a portion of the land as described in the deed recorded
18 in the Essex County registry of deeds at Book 312 Plan 29.

19 SECTION 3. Monastiero Consulting Services, LLC shall assume all costs associated with
20 engineering, surveys, appraisal, deed preparation and other expenses necessary to execute the
21 conveyances authorized in this act.

22 SECTION 4. Except as partially released or amended in accordance with this act, the
23 conservation restriction identified in Section 1 shall remain in full force and effect.

24 SECTION 5. This act shall take effect upon its passage.